

17. 9:00 AM CASE NUMBER: MSC21-00549
CASE NAME: ON DECK CAPITAL VS. RUDNICK
*HEARING ON MOTION IN RE: JUDGMENT
FILED BY: ON DECK CAPITAL, INC., A DELAWARE CORPORATION
TENTATIVE RULING:

Granted. The moving papers establish adequate grounds. There is no opposition.

18. 9:00 AM CASE NUMBER: MSC21-00624
CASE NAME: COLEMAN VS YDESIGN GROUP, LLC
HEARING IN RE: COMPLIANCE
FILED BY:
TENTATIVE RULING:

Continued to July 23, 2026, pursuant to stipulation and order entered December 1, 2025.

19. 9:00 AM CASE NUMBER: MSC21-01298
CASE NAME: MARIO R LOPEZ VS. ELECTRIC TECH CONSTRUCTION
*HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL
FILED BY:
TENTATIVE RULING:

The motion is **granted**. Counsel is directed to serve the order relieving counsel in compliance with CRC 3.1362(d). **Counsel is not formally relieved until the order is served on the client and proof of service is filed with the court.**

20. 9:00 AM CASE NUMBER: MSC21-02630
CASE NAME: STATE FARM GENERAL VS BMW OF NORTH AMERICA
*HEARING ON MOTION IN RE: STAY PROCEEDINGS PENDING APPEAL AND TO TAX COSTS;
MEMORANDUM OF POINTS AND AUTHORITIES; DECLARATION OF REBEKKA R. MARTORANO
FILED BY: BMW OF NORTH AMERICA, LLC
TENTATIVE RULING:

Defendants move to stay this action pending appeal, or in the alternative to tax plaintiffs' costs. Plaintiffs prevailed at trial and defendants have appealed. The matter is stayed pending appeal pursuant to Code of Civil Procedure sections 916 through 919, except that "the trial court may proceed upon any other matter embraced in the action and not affected by the judgment or order." (Plaintiffs waived an undertaking for appeal of the judgment.) The only matters in question at this point are plaintiffs' cost bill and defendants' motion to tax costs, which arguably fall within the exception to the automatic stay. Defendants ask that the action be stayed, so they do not have to unnecessarily litigate the costs issues in the event they prevail in their underlying appeal. Plaintiffs do not expressly oppose the request. The costs issue involves not simply the reasonableness of costs, but contested issues concerning the proper application of offers to compromise under Code of Civil Procedure section 998. All things considered, it is better not to litigate that issue unless made necessary by the ultimate decision on appeal. The motion to stay is **granted**.

21. 9:00 AM CASE NUMBER: MSC22-00243

CASE NAME: VIRELAS VS. SWEEZEY

***HEARING ON MOTION IN RE: TO COMPEL REQUEST FOR ADMISSIONS**

FILED BY: SWEEZEY, MELISSA K

TENTATIVE RULING:

Defendant Melissa Sweezy moves to compel further responses to her requests for admissions. Plaintiff raised a number of responses, including that it is a repeat of a motion to compel requests for admission that previously was denied by the Commissioner, that defendant did not meet and confer, and that the motion is untimely.

On February 7, 2025, defendant served plaintiff with 56 requests for admission (in question form). On March 8, 2025, plaintiff served verified responses, which included some objections. On May 14, 2025, Defendant filed with the court a motion to compel further responses to requests for admission. Defendant's proof of service, filed June 6, 2025, attests that the motion and supporting papers were served on May 11, 2025. Code of Civil Procedure section 2033.290(c) provides that "[u]nless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or any specific later date to which the requesting party and the responding party have agreed in writing, the requesting party waives any right to compel further response to the requests for admission." Accordingly, notice of the motion had to be served 45 days from March 8, i.e., April 22, 2025. Defendant does not assert that she was given an extension to file the motion. Accordingly, the **motion is not timely and is denied**.

22. 9:00 AM

CASE NUMBER: MSC22-00243

CASE NAME: VIRELAS VS. SWEEZEY

HEARING ON ORDER TO SHOW CAUSE IN RE: WHY THE COURT SHOULD NOT DISMISS THE CASE PURSUANT TO CCP 438

FILED BY:

TENTATIVE RULING:

Before the Court is an order to show cause why this case should not be dismissed pursuant to Code of Civil Procedure section 438. For the reasons set forth, the Court (a) **grants** judgment on the pleadings as to the complaint on the ground the complaint fails to allege facts sufficient to state a cause of action (Code Civ. Proc. §§ 438(b)(2) and 438(c)(3)(B)(ii)), **with leave for Plaintiff to amend his complaint**; and (b) discharges the order to show cause based on this ruling. Plaintiff shall file his amended complaint and serve defendant **by December 19, 2025**.

The Court hereby sets a further case management conference for March 3, 2026, 8:30 a.m. Plaintiff shall file and serve written notice of the further case management conference on defendant.

Background

Plaintiff Antonio Virelas filed his complaint initiating this action on February 6, 2022. Defendant Melissa Sweezy has answered. The parties are both unrepresented.

Plaintiff filed an issue conference statement on July 7, 2025. On July 25, 2025, the Court held an issue conference at which the parties appeared. The Court considered the complaint and indicated its concerns regarding whether the complaint alleged facts to state a cause of action and support the relief sought. The Court informed the parties that it would issue an order to show cause ("OSC") as to